

STATE OF NEW YORK

8365--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 13, 2025

Introduced by M. of A. LEVENBERG, STERN -- read once and referred to the Committee on Veterans' Affairs -- recommitted to the Committee on Veterans' Affairs in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to eligibility for admission to New York state veterans' homes

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (h) of subdivision 1 of section 2632 of the
2 public health law, as amended by section 3 of part E of chapter 57 of
3 the laws of 2024, is amended to read as follows:

4 (h) in the Persian Gulf conflict from the second day of August, nine-
5 teen hundred ninety to the end of such conflict including military
6 service in Operation Enduring Freedom, Operation Iraqi Freedom, Opera-
7 tion New Dawn or Operation Inherent Resolve and was the recipient of the
8 global war on terrorism expeditionary medal or the Iraq campaign medal
9 or the Afghanistan campaign medal; and who was a resident of the state
10 of New York at the time of entry upon such active duty or who shall have
11 been a resident of this state for six months next preceding the applica-
12 tion for admission or who has an immediate family member who shall have
13 been a resident of this state for six months prior to the date of appli-
14 cation for admission, provided that for purposes of this section an
15 immediate family member shall include a spouse, or a birth or adoptive
16 parent, child, sibling, stepparent, stepchild, stepsibling, grandparent
17 and grandchild, shall be entitled to admission to said home after the
18 approval of the application by the board of visitors, subject to the
19 provisions of this article and to the conditions, limitations and penal-
20 ties prescribed by the regulations of the department. Any such veteran
21 or dependent, who otherwise fulfills the requirements set forth in this
22 section, may be admitted directly to the skilled nursing facility or the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD11660-02-6

1 health related facility provided such veteran or dependent is certified
2 by a physician designated or approved by the department to require the
3 type of care provided by such facilities.

4 § 2. Subdivision 6 of section 2632 of the public health law, as
5 amended by chapter 455 of the laws of 2002, is amended to read as
6 follows:

7 6. The board of visitors shall require an applicant for admission to
8 such home, or the immediate family member of a veteran applicant for
9 admission, if applicable, to file an affidavit of New York state resi-
10 dence and the affidavits of at least two householders in and residents
11 of the county in New York state of which the applicant claims at the
12 time of such application to be a resident or to have an immediate family
13 member who is a resident; and such affidavits shall, on presentation, be
14 accepted and received as sufficient proof, unless contradicted, of the
15 residence of such applicant or immediate family member of such applicant
16 in any actions or proceedings against such county in which such resi-
17 dence of such applicant is material.

18 § 3. A veteran as described in subdivision 1 of section 2632 of the
19 public health law, who has a spouse, or a birth or adoptive parent,
20 child, sibling, stepparent, stepchild, stepsibling, grandparent or
21 grandchild, who shall have been a resident of this state for six months
22 prior to the date of application for admission, shall be entitled to
23 admission to the Long Island state veterans home at Stony Brook univer-
24 sity, after the approval of the application by the board of visitors or
25 similar authority of such home, subject to the provisions of applicable
26 law and to the conditions, limitations and penalties prescribed by the
27 regulations of the state university of New York.

28 § 4. This act shall take effect immediately.